TEXAS · HOME CARE AGENCY (HCSSA) LICENSE

Texas Home Care License Readiness Checklist

Everything the Texas Health and Human Services Commission (HHSC) will expect to find in place before it licenses a non-medical home care agency under 26 TAC Chapter 558 — in one page, so you can tick it off before you apply and before any inspection. From AutoloomStudio, the makers of the Texas policy and procedure manual.

Before you apply — and before any inspection

- [ ] Entity registered with the Texas Secretary of State; IRS Employer Identification Number; a place of business in Texas with secure storage for original active client records and a telephone answered during stated operating hours
- [ ] Licence holder identified; owners of 5 % or more, controlling persons, affiliates and the chief financial officer listed and clear of Chapter 560 convictions; resolutions passed adopting this manual ...
- [ ] Administrator and alternate administrator designated in writing, each meeting § 558.244, with the eight pre-designation training hours and HHSC's Presurvey Training recorded; the employee who can admit surveyors named in writing ...
- [ ] Every policy Chapter 558 requires in writing adopted and listed; the drug testing choice, the delegation choice and the pediatric choice made and written into, and ...
- [ ] At least two complete personnel files: Chapter 250 check dated before first contact; printed NAR and EMR results; EMR written information acknowledged within five working days of hire; signed job description; orientation ...
- [ ] Supervisor designated with the § 558.404(g)(2) qualification recorded; the supervision policy written with the default interval and the client/family-input step
- [ ] Client packet ready: agreement with every § 558.292 item and the schedule of charges; informed consent; rights notice with the eight rights, the HHSC Complaint and Incident Intake statement (P.O. Box 149030, Austin ...
- [ ] Service plan form with the six § 558.404(f)(2) elements and the plan of supervision; on-site visit and functional assessment form; daily documentation sheets; backup designee agreement
- [ ] Emergency preparedness and response plan complete — risk assessment, coordinators, continuity of operations, communication, triage categories, STEAR, client information, staff training, drill and review dates ...
- [ ] Dissolution and client transfer plan written; financial resources evidence assembled; business records and billing policy in place
- [ ] QAPI committee of three named and the written plan adopted with the first two meeting dates set; client satisfaction survey ready; infection log opened; incident and complaint logs opened
- [ ] Client list form ready for the first admission; client record checklist and retention log ready; Form 2020 readiness worksheet and the six-month deadline on the calendar
- [ ] Document map completed; everything producible within eight working hours
- [ ] Marketing and website describe the Agency only as a licensed home and community support services agency providing personal assistance services, and appear only after the licence issues (§ 558.404(b))

Key contacts (verify at the time of use)

- HHSC Complaint and Incident Intake (complaints about the Agency; employee-perpetrator abuse, neglect and exploitation reports; Provider Investigation Reports): P.O. Box 149030, Austin, Texas 78714-9030; toll free 1-800-458-9858 (§ 558.282(d); § 558.249(c)(2))
- Texas Department of Family and Protective Services — Texas Abuse Hotline (abuse, neglect or exploitation of an elderly person or person with a disability; 24 hours a day): 1-800-252-5400; www.txabusehotline.org; emergencies — 9-1-1 or local law enforcement
- Texas Secretary of State — Corporations Section (entity registration): sos.state.tx.us/corp; Internal Revenue Service — EIN

Ready to apply? Here is the next step.

46 policies | 50 forms | Editable Word + PDF

Every line on this checklist has a written policy and a form behind it in the Texas HCSSA Policy and Procedure Manual — Personal Assistance Services — Non-Medical Home Care Edition. Written to the text of 26 TAC Chapter 558 with every policy cited and the rule's own words in each one, a crosswalk from every requirement to the page that meets it, the application guide, and a "what to watch" layer for the points the rule leaves open.

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This checklist is drawn from the published text of 26 TAC Chapter 558 and the regulator's published application materials as of October 2026. It is a template, not legal advice, and it is not approved or endorsed by the Texas Health and Human Services Commission (HHSC). Rules, forms and fees change — check the regulator's page before you rely on any item. © 2026 AutoloomStudio. You may print and use this checklist for your own agency; please do not resell it.